

STATE OF NEW YORK

9565--A

IN SENATE

March 25, 2026

Introduced by Sen. BAILEY -- read twice and ordered printed, and when printed to be committed to the Committee on New York City Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing school-based food pantries in schools in the city school district of the city of New York

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "New York city school-based food pantry act".

3 § 2. Legislative intent. The legislature hereby finds and declares
4 that a growing number of children in New York city are living in poverty
5 and are experiencing hunger and food insecurity. These conditions are
6 associated with higher rates of chronic absenteeism, difficulty concen-
7 trating in class, behavioral challenges, and lower academic performance.
8 Research further demonstrates that children who are hungry or food inse-
9 cure are less likely to be ready to learn, more likely to experience
10 adverse physical and mental health outcomes, and more likely to fall
11 behind their peers academically.

12 The legislature therefore finds that it is a matter of overriding
13 state concern to ensure that children in the city school district of the
14 city of New York have reliable access to nutritious food in and around
15 the school day, particularly in schools serving communities with the
16 greatest economic need. School-based food pantries, operated in partner-
17 ship with educators, parents, guardians, and community organizations,
18 are a proven means of reducing food insecurity, stabilizing family
19 nutrition, and supporting student learning and well-being.

20 § 3. The education law is amended by adding a new section 2590-w to
21 read as follows:

22 § 2590-w. School-based food pantries in New York city schools.

23 1. Establishment of program. (a) Subject to the availability of funds
24 appropriated for this purpose, the chancellor shall establish and main-
25 tain school-based food pantries in schools throughout the city district.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14243-02-6

(b) School-based food pantries established pursuant to this section shall be located on the premises of a city district school and shall store and distribute nutritious food, without charge, to students enrolled in such school and their parents or persons in parental relation for consumption outside of regular school meals.

(c) The chancellor shall prioritize schools serving communities with the highest levels of student economic need, poverty, and food insecurity when determining which schools to establish school-based food pantries in pursuant to this section. The chancellor may use indicators such as the percentage of students eligible for free or reduced-price school meals, the percentage of students who are homeless or in temporary housing, and other measures of concentrated poverty for such food insecurity.

2. Operation and schedule. Each school-based food pantry established pursuant to this section shall operate on the premises of the school during designated times during the regular school week, on days when school is in session, but shall not interfere with required instructional time. Each school-based food pantry shall be open and available to students and their parents or persons in parental relation at times reasonably accessible to families, which may include before or after school, not less than two days per week during the regular school week.

3. Community partnerships; training and technical assistance. (a) The chancellor shall encourage and facilitate cooperation between schools operating school-based food pantries and local food pantries, food banks, and other community-based organizations with expertise in food distribution and hunger relief.

(b) Schools operating school-based food pantries pursuant to this section may enter into written agreements with such local organizations to receive training for school volunteers and to obtain technical assistance related to food safety, inventory management, volunteer management, outreach to families, and related matters.

(c) The chancellor may enter into citywide or borough-wide agreements with local or regional food pantries, food banks, or similar organizations to support the establishment and operation of school-based food pantries and to coordinate the donation, purchase, or delivery of food and related supplies.

4. Guidance and safeguards. The chancellor shall issue guidance to schools operating food pantries pursuant to this section, which shall include at a minimum:

(a) procedures to ensure that students and families are treated with dignity and confidentiality;

(b) standards for food safety, storage, and handling, consistent with applicable state and local health and safety requirements;

(c) procedures to ensure that school-based food pantry operations do not interfere with instructional time or the safe operation of the school building;

(d) encouragement of culturally appropriate and nutritious food options to the extent practicable; and

(e) procedures to encourage that school-based food pantries established pursuant to this section be organized and operated primarily by volunteers.

5. Reporting. Commencing with the second school year following the effective date of this section, the chancellor shall annually prepare and submit to the governor, the temporary president of the senate, the speaker of the assembly, and the mayor and council of the city of New York, on or before January first, a report that shall include:

1 (a) the number of schools in which school-based food pantries have
2 been established and are operating;

3 (b) the borough and community school district in which each such
4 school is located;

5 (c) the approximate number of students and families served by such
6 pantries during the preceding school year; and

7 (d) a description of any partnerships with local food pantries, food
8 banks, or other community-based organizations that support the operation
9 of school-based food pantries.

10 § 4. This act shall take effect on the one hundred twentieth day after
11 it shall have become a law. Effective immediately, the addition, amend-
12 ment and/or repeal of any rule or regulation necessary for the implemen-
13 tation of this act on its effective date are authorized to be made and
14 completed on or before such effective date.